

**Before the
FEDERAL MARITIME COMMISSION**

Docket No. 24-01

Visual Comfort & Co.

v.

COSCO Shipping Lines Co. Ltd.

RESPONDENT’S CORRECTED MOTION FOR CONFIDENTIAL TREATMENT

Pursuant to the Rules of Practice and Procedure of the Federal Maritime Commission (“Commission” or “FMC”) and the Order of the Presiding Officer, COSCO Shipping Lines Co. Ltd. (“COSCO” or “Respondent”) respectfully requests confidential treatment of the following information contained in the Respondent’s Brief in Opposition (“Opposition”), Respondent’s Responses to Complainant’s Proposed Findings of Fact (“RCPFFs”), Respondent’s Proposed Findings of Fact (“RPFFs”), and Respondent’s Appendix (“RX”). This Motion corrects the Motion for Confidential Treatment filed on December 6, 2024.

Because Respondent received indications from Visual Comfort & Co. (“VCC” or “Complainant”) with respect to confidential treatment late on December 6, 2024 (the procedural deadline), Respondent did not have adequate time to prepare and file redacted and public versions of these documents before it timely served these documents on Complainants (with courtesy copies to the Office of the Administrative Law Judges). Respondent is simultaneously today filing marked confidential (marked) versions and redacted public versions of the documents with no other changes, and, as instructed by the Presiding Officer, separately serving confidential marked

versions of the RPFFs and RCPFFs on opposing counsel with copies to the Office of the Administrative Law Judges.

The good cause supporting each of these requests is set forth in the table that follows below.

Document Number	Description	Classification Requested For	Reason(s) for Confidential Designation
RAppendix at RX2-21 RPFF 2, 190, 195, 225, 249 and 262. RCPFF at 4, 18, 49, 50, 69 and 70.	Complainant's Supplemental Responses to Respondent's First Set of Discovery Requests, May 31, 2024	Material indicated	Commercially sensitive trade secret information.
RAppendix at RX23-35 RPFF at 18, 171, 231 and 236; RCPFF at 47 and 118; and Respondent's Opposition Brief at 2.	Sample bills of lading	Material indicated	Commercially sensitive trade secret information.
RAppendix at RX81, 83-84 RPFF at 198 and 199; RCPFF at 52 and 107; and Respondent's Opposition Brief at 65.	Rebuttal Expert Report of Daniel Hackett	Material indicated	Commercially sensitive trade secret information.
RAppendix at RX107 RPFF at 65 and 78.	VCC047245, 8/23/2022 email	Material indicated	Commercially sensitive trade secret information and communications with third-party drayage carrier, including trade secret logistics information.
RAppendix at RX109 RPFF at 66.	VCC034954, 12/8/2021 email	Material indicated	Commercially sensitive trade secret information, including confidential communications

			regarding internal product distribution logistics.
RAppendix at RX111-136 RPFF at 68, 70, 86 and 87 and RCPFF at 21.	VCC010747 –VCC010772, emails from 12/27/2021 to 5/7/2022	Material indicated	Commercially sensitive trade secret information, including confidential communications regarding third-party product distribution logistics.
RAppendix at RX138-142 RPFF at 79, 124 and 219.	VCC000006 – VCC000010, 2/11/2021 email	Material indicated	Confidential rate and pricing information of third party.
RAppendix at RX144-145 RPFF at 80 and RCPFF at 21.	VCC013420 – VCC013421, 2/4/2022 email	Material indicated	Commercially sensitive trade secret information, including confidential communications regarding internal product distribution logistics.
RAppendix at RX147 RPFF at 83.	VCC034063, 2/15/2022 email	Material indicated	Commercially sensitive trade secret information, including confidential communications regarding internal product distribution logistics.
RAppendix at RX149 RPFF at 91.	VCC015261, 12/22/2021 email	Material indicated	Commercially sensitive trade secret information, including confidential communications regarding internal and third-party product distribution logistics.
RAppendix at RX151 RPFF at 90, and 93.	VCC047508, 4/5/2022 email	Material indicated	Commercially sensitive trade secret information, including confidential communications regarding internal product distribution logistics and corporate strategy.
RAppendix at RX153 RPFF at 113.	VCC008671, 8/11/2021 email	Material indicated	Commercially sensitive trade secret information, including confidential communications regarding

			internal product distribution logistics.
RAppendix at RX155-156 RPFF at 164.	VCC031164, VCC006443, emails re: last free days from 2/23/2021 and 6/16/2021	Material indicated	Commercially sensitive trade secret information, including confidential communications regarding internal and third-party product distribution logistics.
RAppendix at RX158 RPFF at 181, 260, 261, 263 and 272.	VCC000005, VCC COSCO Charges by Container Number Excel spreadsheet	Material indicated	Commercially sensitive trade secret information regarding internal product sourcing and distribution.
RAppendix at RX160 Respondent's Opposition Brief at 51 and 65.	VCGPOR REPORT – YEAR 2021 Excel spreadsheet	Material indicated	Confidential transactional data and commercially sensitive trade secret information regarding internal and third-party product distribution logistics.
RAppendix at RX162 Respondent's Opposition Brief at 51 and 65.	VCGPOR – 2022 Report Excel spreadsheet	Material indicated	Confidential transactional data and commercially sensitive trade secret information regarding internal and third-party product distribution logistics.
RAppendix at RX164 RPFF at 92.	VCC034057, 2/15/2022 email	Material indicated	Commercially sensitive trade secret information, including confidential communications regarding internal product distribution logistics.
RAppendix at RX166 RPFF at 193 and Respondent's Opposition Brief at 53.	VCC047829, 3/4/2021 email	Material indicated	Commercially sensitive trade secret information and communications with third-party NVOCC, including trade secret logistics information.
RAppendix at RX168-174	VCC034035 – VCC034041,	Material indicated	Commercially sensitive trade secret information,

RPFF at 62 and 64.	emails from March 2022		including confidential communications regarding internal and third-party product distribution logistics.
RAppendix at RX176-191 RPFF at 14, 15, 187, 188, 189, 217, 220, 221, 222 and 234; RCPFF at 13, 19, 46 and 109; and Respondent's Opposition Brief at 53.	VCC047847 – VCC047849, VCC000011 – VCC000018 RIM & VCC Service Arrangements	Material indicated	Confidential and commercially sensitive contract information.
RAppendix at RX193-214 RPFF at 245, 251 and 252.	Complainant's Supplemental Responses to Respondent's Interrogatory 22, September 9, 2024	Material indicated	Commercially sensitive trade secret information.
RAppendix at RX401 RPFF at 60.	VCC011937, 3/21/2022 email	Material indicated	Commercially sensitive trade secret information regarding internal product sourcing and distribution.
CAppendix at CX726, lines 18-22 RCPFF at 38.	Deposition Transcript of Tom Takase	Material indicated	Commercially sensitive and trade secret information, including internal costs, personnel and staffing policies and practices.
CAppendix at CX733 – CX749 RCPFF at 72, 76, 77, 112 and 113; Respondent's Opposition Brief at 16.	Deposition Transcript of Tom Takase	Material indicated	Commercially sensitive and trade secret terms relating to strategies for pricing and service.
CAppendix at CX 756, lines 12-22 RPFF at 110; RCPFF at 64.	Deposition Transcript of Tom Takase	Material indicated	Commercially sensitive terminal cost and services information.
CAppendix at CX760, lines 12-22	Deposition Transcript of	Material indicated	Commercially sensitive and trade secret

RPFF 126, Respondent's Opposition Brief at 38.	Tom Takase		information on terminal costs, services, and practices.
CAppendix at CX783, lines 14-22 RCPPF at 117.	Deposition Transcript of Tom Takase	Material indicated	Highly sensitive commercial information on prices and costs this data originated from a file produced by Respondent COSCO and due to data's highly sensitive commercial and trade secret information, marked "Attorney's Eyes Only." Discussed by the witness at deposition with the expectation that such information remain confidential.
CAppendix at CX1207-1209 RPFF at 47, 89.	7/27/2022 communication between VCC and its drayage provider	Material indicated	Commercially sensitive trade secret information, including confidential communications regarding internal and third-party product distribution logistics.
CAppendix at CX1211-1213 RPFF at 47, 89.	7/27/2022 communication between VCC and its drayage provider	Material indicated	Commercially sensitive trade secret information, including confidential communications regarding internal and third-party product distribution logistics.

For the foregoing reasons, Respondent respectfully requests that, for good cause shown, the information identified above be kept confidential, and that the Presiding Officer accept the

confidential and public versions of these documents.

Dated: December 8, 2024

Respectfully submitted,

Rebecca A. Fenneman

JEFFREY/FENNEMAN LAW + STRATEGY, PLLC

Rebecca A. Fenneman, Esq.

Eric C. Jeffrey, Esq.

Kaya M. Massey, Esq.

Nicholas L. Webb, Esq.

700 12th Street, NW, Suite 700

Washington, DC 20005

Tel: 202-904-2301

EJeffrey@JeffreyFenneman.com

RFenneman@JeffreyFenneman.com

KMassey@JeffreyFenneman.com

NWebb@JeffreyFenneman.com

ATTORNEYS FOR RESPONDENT

COSCO Shipping Lines Co., Ltd.

CERTIFICATE OF SERVICE

I hereby certify that on this 8th day of December, 2024, a true and correct copy of the foregoing **RESPONDENT’S CORRECTED MOTION FOR CONFIDENTIAL TREATMENT** was served by email on all counsel of record in accordance with 46 CFR Part 502 and the Commission’s Order of May 12, 2020.

ATTORNEYS FOR COMPLAINANT

Buchanan, Ingersoll & Rooney, LLP

Jennifer M. Oliver, Esq.
600 W. Broadway, Suite 1100
San Diego, CA 92101
Jennifer.oliver@bipc.com

Jacob M. Adams, Esq.
1737 King Street, Suite 500
Alexandria, VA 22314-2727
jake.adams@bipc.com

Melissa J. Bayly, Esq.
550 Broad Street, Suite 810
Newark, NJ 07102-2582
Melissa.bayly@bipc.com

/s/ *Rebecca A. Fenneman*
Rebecca A. Fenneman
RFenneman@JeffreyFenneman.com
JEFFREY/FENNEMAN LAW + STRATEGY, PLLC
700 12th Street, NW, Suite 700
Washington, DC 20005